

Court No. - 21

Case :- WRIT - C No. - 1142 of 2023

Petitioner :- Shiv Veer

Respondent :- State Of U.P. And 4 Others

Counsel for Petitioner :- Hari Nath Chaubey

Counsel for Respondent :- C.S.C., Madan Mohan Chaurasia

Hon'ble Manoj Kumar Gupta, J.

Hon'ble Ajit Singh, J.

Counsel for the petitioner submits that without there being any final assessment order, the impugned recovery certificate has been issued.

Counsel for the respondent seeks time to obtain instructions.

List as fresh on 18.1.2023.

(Ajit Singh, J.) (Manoj Kumar Gupta, J.)

Order Date :- 13.1.2023

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Counsel for Respondent :- C.S.C., Madan Mohan Chaurasisa

Hon'ble Manoj Kumar Gupta,J.

Hon'ble Vikram D. Chauhan,J.

Learned counsel for the respondent-Corporation seeks further time to complete his instruction.

List as fresh on 25.1.2023.

In the meantime, no coercive measure shall be taken against the petitioner in pursuance to the impugned recovery.

Order Date :- 18.1.2023

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(Vikram D. Chauhan,J.) (Manoj Kumar Gupta,J.)

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Hon'ble Manoj Kumar Gupta, J.

Hon'ble Vikram D. Chauhan, J.

The instant petition has been filed challenging the recovery notice dated 09.11.2022 issued by the respondent No. 3 for recovery of electricity dues in a case of theft of electricity.

The case of the petitioner is that without there being any final assessment order in existence, the respondents have issued the impugned recovery citation.

On 13.01.2023 the following order was passed:-

"Counsel for the petitioner submits that without there being any final assessment order, the impugned recovery certificate has been issued.

Counsel for the respondent seeks time to obtain instructions.

List as fresh on 18.1.2023".

Today on matter being taken up, none is present on behalf of the respondents.

In our opinion, interest of justice would be served in directing the petitioner to file objections against the provisional assessment notice dated 06.04.2022 within fifteen days from today and in directing the respondents to decide the same by following the procedure prescribed under the Electricity Supply Code, 2005.

Accordingly, the petition is disposed of as follows :-

(a) The petitioner will file objections against the provisional assessment notice within fifteen days from today before respondent No. 4.

(b) The respondent No. 4 shall proceed to decide the objections in accordance with the procedure prescribed under the Electricity Supply Code, 2005.

(c) The impugned recovery will abide by the decision that would be taken by respondent No. 4 on the objection of the petitioner.

(d) In case, the petitioner fails to file objections, it shall be open to respondents to proceed further in the matter in accordance with law.

(Vikram D. Chauhan, J.) (Manoj Kumar Gupta, J.)

Order Date :- 25.1.2023

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